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of Maritime Affairs

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25 February 2010

SECURITY ADVISORY: 01/2010

This Security Advisory supersedes 'Security Advisories: 7/2008 and 01/2009'

SUBJECT: U.S. Coast Guard Revises Security Advisory Regarding Ports Not Maintaining Effective Anti-Terrorism Measures.

Reference: (a) USCG Port Security Advisory (10-09) - ATTACHED

Dear Owner/Operator:

Update: The U.S. Coast Guard issued the attached *Port Security Advisory (10-09)* on 20 November 2009 describing the required actions to be taken by ships that call at ports in countries that the US has determined do not maintain effective anti-terrorism measures. In *Port Security Advisory 10-09* the US Coast Guard has identified Madagascar as the most recent additional country not maintaining effective anti-terrorism measures in its ports (Cambodia and Republic of the Congo were added to the list earlier, since June 2008). Venezuela is also included in the list of countries identified by the USCG in their *Port Security Advisory (01-09)*, and therefore the guidelines and instructions in this advisory pertain to vessels visiting Venezuela as well. This Advisory supersedes Liberian Marine Security Advisory 01/2009. The advisory is relevant to vessels calling on the respective ports in all of the countries listed by the USCG in their Port Security Advisories and has no connection or affect on vessels that may be registered in those countries.

All vessels that visited the countries listed in paragraph B of the USCG Advisory (with exceptions noted) during their last five port calls will be boarded or examined at sea by the Coast Guard to ensure required actions were taken. Failure to properly implement the actions listed in paragraph C.1 through C.5 of the attached advisory may result in delay or denial of entry into the United States.

Vessel security actions: Effective immediately ALL Liberian registered vessels while in ports of the countries noted in the attached USCG Advisory (10-09) shall:

1. Implement measures as per the ship's security plan **equivalent** to Security Level 2 and
2. Take the required actions listed in section C of the attached advisory including attempting to execute a Declaration of Security (DOS).

Note: We have received reports that some ports have objected to a DOS indicating that a vessel is at Security Level 2 while the port has declared itself at Security Level 1. Therefore, the following guidelines, which have been confirmed with the USCG, should be followed:

1. A vessel is not required to raise its security level to level 2 when visiting the ports listed in ref (a), unless the port is at security level 2 or you receive notification from the Administration to increase to security level 2.

2. The USCG is aware of the possible negative effects and potential problems that may arise when attempting to execute a DOS, indicating the ship has implemented measures equivalent to Security Level 2, while the port is at Security Level 1. Therefore when executing a DOS; the USCG will accept an entry indicating Security Level 1; as long as the extra measures equivalent to Security Level 2 have been noted and recorded in the ship's log.

Reminder: No vessel shall operate at a Security Level lower than that of a port facility. Additionally, the Master has the overriding authority to increase the Security Measures of the vessel at any time to protect the safety and security of the vessel.

Questions regarding this Advisory should be directed to Security Department at +1 703 251 2405, or security@liscr.com.

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Port Security Advisory (10-09)

A. Background:

The Maritime Transportation Security Act of 2002 (MTSA) has mandated that the United States Coast Guard evaluate the effectiveness of anti-terrorism measures in foreign ports and provides for the imposition of conditions of entry on vessels arriving to the United States from countries that do not maintain effective anti-terrorism measures (MTSA, 46 USC § 70108).

The Coast Guard has determined that Madagascar is the most recent country not maintaining effective anti-terrorism measures in its ports. Actions required as listed in paragraphs C and D of this Port Security Advisory take effect for vessels that arrive in the United States on or after December 4, 2009 after visiting ports in Madagascar (with the exception of Toamasina (also known as Tamatave) - MGTMM-0001) as one of their last five ports of call.

B. Countries Affected:

The Coast Guard has determined that ports in the following countries are not maintaining effective anti-terrorism measures:

Madagascar (the exception of Toamasina (also known as Tamatave) - MGTMM-0001)

Cambodia (with the exception of the Phnom Penh Autonomous Port – IMO number not listed; and Sihanoukville Autonomous Port – IMO number not listed)

Cuba

Cameroon (with the exception of the Ebome Marine Terminal – CM394-0001; Quai GETMA (LAMNALCO Base) Facility – CMDLA-0005; the Société Nationale de Raffinage (SONARA) Terminal – IMO number not listed; and the Kome-Kribi 1- CM234-0001).

Equatorial Guinea (with the exception of the ports of Ceiba – GQ362-0001/0002; K-5 Oil Center – IMO number not listed; Luba - GQLUB-0001; Punta Europa Terminal – GQ368-0001; and Zafiro Marine Terminal – GQ370-0001)

Guinea-Bissau

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Indonesia (with the exception of Banjarmasin Port – IDBDJ-0001/0002; Belawan International Container Terminal (BICT) – IDBLW-0001; Belawan Multi-Purpose Terminal – IDBLW-0002; British Petroleum Arco Ardjuna – IDTPP-0001; Caltex Oil Terminal Dumai – ID258-0001; Chevron Santan Marine Terminal – IDSAT-0001; Duks Pt. Semen Padang – IDPDG-0001; Jakarta International Container Terminal – IDTPP-0003; Jamrud Pelindo III Tanjung Perak (JPTP) – IDSUB-0002; Newmont Nusa Tenggara – ID259-0001; Pelindo II Conventional Terminal Jakarta – IDTPP-0005; Pertamina Unit Pengolahan II Dumai – ID295-0006; Pertamina Unit Pengolahan V Balikpapan – ID295-0015; PT Badak Bontang Natural Gas Liquefaction – ID295-0001; PT Indomico Mandiri Bontang [Botang Coal Terminal] IDBXT-0008; PT Multimas Nabati Asaha – IDPNK-0001; PT Pelabuhan Indonesia I Cabang Dumai – IMO number not listed; PT Persero Pelabuhan Indonesia II Cabang Padang- IDPDG-0002; Pt Pertamina Unit Pemasaran III Jakarta – IDTPP-0009; PT Pupuk Kaltim Bontang – IDBXT-0002; PT Terminal Petikemas Surabaya – ID280-0001; Semarang International Container Terminal – IDSRG-0005; Senipah Terminal Total E&P Indonesia Balikpapan – ID276-0001; Terminal Petikemas Koja (KOJA) – IDTPP-0010)

Iran

Liberia (with the exception of the Firestone Facility – IMO number not listed)

Mauritania (with the exception of the Chinguetti Terminal - IMO number not listed)

Republic of the Congo (with the exception of the Djeno Oil Terminal – (CGPNR-0007)

Syria

Venezuela

C. Actions Required by Vessels Visiting Countries Affected:

All vessels arriving to the United States that visited the countries listed in paragraph B (with exceptions noted) during their last five port calls must take actions 1 through 5 listed below while in the countries listed in paragraph B as a condition of entry into U.S. ports:

1. Implement measures per the ship's security plan equivalent to Security Level 2;
2. Ensure that each access point to the ship is guarded and that the guards have total visibility of the exterior (both landside and waterside) of the vessel. Guards may be:
 - provided by the ship's crew, however, additional crewmembers should be placed on the ship if necessary to ensure that limits on maximum hours of work are not exceeded and/or minimum hours of rest are met, or
 - provided by outside security forces approved by the ship's master and Company Security Officer.



3. Attempt to execute a Declaration of Security;
4. Log all security actions in the ship's log; and
5. Report actions taken to the cognizant U.S. Coast Guard Captain of the Port prior to arrival in the U.S.

Vessels that visited the countries listed in paragraph B (with exceptions noted) during their last five port calls will be boarded or examined by the Coast Guard to ensure the vessel took the required actions. Failure to properly implement the actions listed in paragraph C.1 through C.5 may result in delay or denial of entry into the United States.

D. Actions Required by Vessels in U.S. Ports:

Based on the findings of the Coast Guard boarding or examination, the vessels subject to the conditions of entry in paragraph B **may** be required to ensure that each access point to the ship is guarded by armed security guards and that they have total visibility of the exterior (both landside and waterside) of the vessel while in U.S. ports. The number and location of the guards must be acceptable to the cognizant U.S. Coast Guard Captain of the Port. For those vessels that have demonstrated good security compliance and can document that they took the measures called for in C.1. through C.4. above, the armed security guard requirement will normally be waived.